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File No.: EXP202302216

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 9, 2023. The complaint is directed against the individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows: The complainant states that they are a neighbor of the respondent and that the respondent has installed surveillance cameras in their home which, due to their location and orientation, are capable of capturing images of the complainant's home without consent.

The complainant provides communications sent to the respondent regarding the claimed surveillance system and images showing the location of the claimed cameras.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Upon consulting the database of this AEPD, the transfer was made on 10/03/23, without the respondent providing any response regarding the described facts.

THIRD: On May 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 26, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: Upon consulting the database of this AEPD on 23/09/24, a written statement was received from the respondent indicating that the cameras are not "operational," justifying their presence due to certain uncivil behaviors of the complainant, which have been subject to judicial proceedings, with local police being aware of their existence after having been dispatched to the location of the events.

SIXTH: On 01/10/24, a was issued proposing the closure of the current procedure, considering that, according to the arguments presented, no processing of personal data associated with an identified or identifiable natural person has been substantiated.

As recorded in the computer system of this agency, the aforementioned Proposal was notified in due time and form on 16/10/24.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. B.B.B. with NIF ***NIF.1 is identified as the main responsible party.

Second. The presence of the surveillance camera(s) installed by the respondent is confirmed, who does not deny being responsible for their installation.

Third. It is confirmed that the installed system is not operational, serving merely a deterrent function, and no processing of personal data has been substantiated to date.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

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In the present case, we proceed to examine the claim dated 09/02/23, through which the "presence of cameras that may be misaligned" affecting the rights of a third party without justified cause is reported. Article 5.1 c) of the GDPR states the following:

Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The installation of such devices must include the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause.

Furthermore, images of public space cannot be obtained with such devices, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current LO 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places. It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or the transit of third parties, except in cases permitted by the regulations.

III

On 23/09/24, a written response was received from the party being claimed, stating that the system is not , serving merely a deterrent function.

The installation of video surveillance devices serves a preventive function against certain incivility or even criminal acts, carried out under the belief that they will have no repercussions, and the installation of such devices can prevent the perpetration of these acts.

It falls within the freedom of the owner of a private space to install devices, as well as to decide on their operability, provided that they consider that the orientation of these devices should preferably be towards their private space, avoiding unnecessary disturbance to third parties who may feel intimidated by them.

Similarly, in situations such as those described, if no other solution exists, the temporary installation of a hidden camera has been permitted to document acts against urban furniture, private vehicles, graffiti, etc., on the condition that the obtained images are made available to the competent authority for the appropriate purposes.

The feeding of animals in public spaces is a matter regulated by the Municipal Ordinances (Sevilla), with these being the competent administrative authority to address the substantive issue concerning safety and health in the case of food deposits in public spaces and other possible consequences.

The principle of the presumption of innocence prevents the imposition of an administrative infraction

when there is no obtained and verified evidence of the facts that motivate the accusation or of the involvement of the alleged infringer in them.

Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party. The presumption of innocence must prevail without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal. The presumption of innocence prevails without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions. According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence, which in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

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From the allegations presented, it is concluded that the devices installed are not in a condition to process any personal data associated with a natural person, serving merely a deterrent function. It has not been proven that they have processed any personal data of the complainant, having even been subject to analysis as stated by the complainant by the local police dispatched to the scene, who are aware of the issue.

In any case, it is noted that the provision of images of alleged criminal or uncivil acts is permitted as a means of evidence in law in order to substantiate in police or judicial proceedings the alleged perpetrator of the same, as documentary evidence that may support the assertions made. Finally, the significance of the rights at stake is emphasized, and it should be avoided to instrumentalize this Agency in matters related to neighborhood disputes or to resolve them in the appropriate judicial instances.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as no administrative infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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